

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

COMMITTEE SUBSTITUTE
FOR

HOUSE BILL NO. 3453

By: Staires and Wilk

COMMITTEE SUBSTITUTE

An Act relating to eminent domain; establishing burdens of proof; providing for award of attorney fees and costs to prevailing property owner; providing for codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 42 of Title 27, unless there is created a duplication in numbering, reads as follows:

A. In any judicial condemnation proceeding, the owner of an interest in property sought to be condemned shall be entitled, through the timely filing of an exception to the report of the commissioners in such proceeding, to a hearing on the issues of public use or necessity of the taking. At any such hearing, the condemning authority shall bear the burden of proving by a preponderance of the evidence that the proposed taking is for a public use authorized by law, and that the property sought to be

1 taken is reasonably necessary to accomplish that public use. The
2 burden of proof shall remain with the condemning authority at all
3 times, and a resolution or declaration of necessity from the
4 condemning authority shall not, in and of itself, be conclusive or
5 sufficient evidence of necessity.

6 B. If, upon a hearing on public use or necessity, the
7 condemning authority shall fail to establish its right to condemn
8 the property, or any part thereof, the property owner shall be
9 entitled to an award of reasonable attorney fees, costs, and expert
10 witness fees, to be taxed and collected as costs in a civil action.

11 SECTION 2. This act shall become effective November 1, 2026.
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